

Lala Ram v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 March 2018 · WRIT - C No. 8690 of 2018 · **Writ dismissed; Clause 6.5 appeal available; petitioner not with clean hands.**

HEADNOTE

The Allahabad High Court dismissed a writ against a 2013 electricity recovery citation of Rs 2,18,000 where the citation and the disputed bill were not annexed, an earlier writ had been withdrawn, and a District Consumer Forum complaint was pending. A dispute on electricity charges or the bill is remediable by statutory appeal under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court declined to entertain a petition not brought with a clear picture and clean hands.

FACTUAL SUMMARY

Lala Ram challenged a recovery citation dated 19 December 2013 for Rs 2,18,000 as electricity dues. He did not annex the citation or the allegedly incorrect bill. He had earlier filed Writ Petition No. 42451 of 2017, dismissed as withdrawn on 12 September 2017, and had also instituted Complaint No. 21 of 2017 before the District Consumer Forum. The Division Bench heard counsel and dismissed the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-statutory-appeal

HOLDING

A dispute regarding electricity charges or the bill is remediable by statutory appeal under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A writ seeking to quash a recovery citation for such dues will not be entertained where the citation and the bill are not annexed and the petitioner has not come with a clear picture and clean hands, including after withdrawing an earlier writ while a consumer-forum complaint is pending. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND VALIDITY OF THE RECOVERY CITATION DATED 19.12.2013

Neither the citation nor the bill was on the record; the Court declined to entertain the writ. ¶ 1